

appears that the facts lie more within defendant's knowledge than plaintiff's: i.e., less specificity is required where "defendant must *necessarily possess full information* concerning the facts of the controversy." (Weil & Brown, CPG: Civ. Proc. Before Trial (TRG 2026) § 6:147 citing *Miles v. Deutsche Bank Nat'l Trust Co.* (2015) 236 Cal.App.4th 394, 403-404.) Plaintiff explains that the underwriting conditions and internal practices are within defendants' exclusive knowledge so, specificity is not required. As discussed above, concealment is not sufficiently alleged. The demurrer is sustained with thirty days' leave to amend.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2507157	GELLER VS AUTOMOBILE CLUB OF SOUTHERN CALIFORNIA	MOTION TO STRIKE COMPLAINT

Tentative Ruling: The motion to strike is DENIED as moot.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2601718	IQBAL VS HULSMAN	PETITION FOR AN ORDER RELIEVING PLAINTIFFS FROM GOVERNMENT ENTITY CLAIM FILING REQUIREMENTS, OR IN THE ALTERNATIVE, FOR AN ORDER THAT PLAINTIFFS HAVE SUBSTANTIALLY COMPLIED WITH SAID REQUIREMENT

Tentative Ruling: The Court DENIES the Petition.

Here, Petitioners filed a late claim with the County pursuant to Government Code section 911.4 within one year after the accrual of the claim. The inquiry turns to whether Petitioners' failure to present their claim was through mistake, inadvertence, surprise, or excusable neglect. Based on the evidence presented, Petitioners fail to establish their failure to timely file a claim was based on excusable neglect.

The showing required for relief on the grounds of "mistake, inadvertence, surprise or excusable neglect" is the same as required under Code of Civil Procedure section 473, subdivision (b), for relieving a party from a default judgment. (*Ebersol v. Cowan* (1983) 35 Cal.3d 427, 435.) "Cases in which relief on the basis of counsel's excusable neglect is granted generally involve plaintiffs who have diligently acted within the claims-filing limitation period (i.e., six months) to retain counsel..." and the neglectful conduct of counsel or counsel's staff is deemed "relatively minor." (*Munoz v. State of California* (1995) 33 Cal.App.4th 1767, 1782; *Leake v. Wu* (1976) 64 Cal.App.3d 668 [relief denied where counsel retained three weeks after accrual of cause of action did